



A COMMUNITY OF CHOICE

OFFICE OF THE CITY ENGINEER

2101 O'Neil Avenue Room 206

Cheyenne, Wyoming 82001

Phone (307)637-6268 Fax (307)637-6256

MEMORANDUM

DATE: March 9, 2022
TO: Honorable Mayor Patrick J. Collins
Members of the City Council

FROM: Thomas D. Cobb, PE, City Engineer

SUBJECT: Development Agreement between City of Cheyenne and Laramie County School District Number One

Please find the attached proposed Development Agreement between City of Cheyenne and Laramie County School District Number One being initiated by the City Engineering Department.

Reason for Agreement:

The primary reasons for the Development Agreement:

- The State Construction Department budget provided to Laramie County School District Number One (District) did not contain funding to fully program for the offsite financial requirements associated with the infrastructure improvements of Carlson Street.
- Allows the City to acquire a 3.3-acre parcel of land owned by the District situated on the southwest portion of the South High School property for the future extension of Cribbon Avenue and York Drive. Monument Home Builders, Inc. will be completing under a separate development agreement forthcoming to the governing body for approval as part of the Harmony Valley development.
- Both parties understand the mutual benefit associated with the construction of Coyote Ridge Elementary and Carlson Street to the community and children served by both the District and City

Memorandum
Honorable Mayor Patrick J. Collins
Members of City Council

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Cost and Funding:

The total cost of Carlson Street and Powderhouse Improvements to the City of Cheyenne shall not exceed \$177,000. The funding for the project is the 2019-2022 5th Penny 1% Sales Tax. The City Engineer's Office shall be filing for reimbursement from adjacent developers under Municipal Code 1.16.080 - Infrastructure improvements - Reimbursement to city.

1.16.080 - Infrastructure improvements—Reimbursement to city.

[SHARE LINK TO SECTION](#)[PRINT SECTION](#)[DOWNLOAD \(DOCX\) OF SECTION](#)[EMAIL SECTION](#)

From time to time, the city may find it appropriate or necessary, due to overriding community need or pressing health and safety concerns, to make certain infrastructure improvements including, but not limited to, any or all of the off-site improvements outlined in [Section 1.16.040](#) of this chapter, using its own funds or other funds available, through areas that may either be developed or are undeveloped. The city may utilize the procedure outlined in this chapter relative to reimbursement for infrastructure it has installed.

(Ord. 3723 § 2 (part), 2006)

CONTRACT NO. _____

DEVELOPMENT AGREEMENT
BETWEEN THE CITY OF CHEYENNE AND
LARAMIE COUNTY SCHOOL DISTRICT NUMBER ONE

1. **Parties.** This DEVELOPMENT AGREEMENT (the "Agreement") is made and entered into by and between Laramie County School District Number One (District), whose address is 2810 House Avenue, Cheyenne, Wyoming 82001, and the City of Cheyenne, a municipality organized and existing under the laws of the State of Wyoming (City), whose address is 2101 O'Neil Avenue, Cheyenne, Wyoming 82001.

2. **Purpose.**

WHEREAS the District is developing the Coyote Ridge Elementary School project on the east side of Powderhouse Road between Dell Range Boulevard and Storey Boulevard, southeast of the intersection of Powderhouse Road and Carlson Street, as outlined on the map attached hereto as Exhibit A, and;

WHEREAS, the Development will result in impacts to the City's infrastructure system, and;

WHEREAS, the purpose of this AGREEMENT is to outline responsibilities of the City and the District for public infrastructure improvements relating to the Development, and;

WHEREAS, the District understands this development requires construction of offsite improvements to serve the Development including the extension of Carlson Street eastward from Powderhouse Road, as indicated on Exhibit A; said extension includes curb and gutter and other typical development requirements of the City, and;

WHEREAS, both parties understand the mutual benefit associated with the construction of Coyote Ridge Elementary to the community and children served by both the District and City, and;

WHEREAS, at the same time Monument Home Builders, Inc. is developing the Harmony Valley, First Filing subdivision which is located south of South High School, between South High School and West College Drive, as indicated on the map attached hereto as Exhibit B, and:

WHEREAS, the City has agreed as part of said development to participate in the future extension of Cribbon Avenue, which is on the west side of the South High School property, south into Harmony Valley First Filing, also indicated on Exhibit B, and;

WHEREAS, in order to extend Cribbon Avenue as outlined above, the City must acquire a 3.3-acre parcel of land owned by the District situated on the southwest portion of the South High School property, as indicated in Exhibit B, now therefore;

WHEREAS, the District has asked for the City to participate in construction costs associated with Carlson Street within the Coyote Ridge Subdivision, and;

WHEREAS, the District has provided appraisals demonstrating that lands shown in Exhibit B plus the estimated District proposed Carlson Street right-of-way improvements are in order of magnitude equal to the estimated monetary value of the total Carlson Street right-of-way improvements required by the City of Cheyenne municipal code that will be constructed at a later date.

WHEREAS, the District and City agree that the West ingress/egress access point on Powderhouse Road shall be perpetual and permanent in nature and remain as illustrated on the approved construction documents. However, the City reserves its right to change the access to a “right in/out” only upon the City’s demonstration that operational efficiencies or safety are being impaired, specifically due to the southbound to eastbound left turn from Powderhouse Road.

NOW, THEREFORE, in consideration of the promises of the parties hereto and other good and valuable consideration, the receipt and adequacy of which are hereby acknowledged, the Parties agree as follows:

3. **Terms of Agreement.**

A. Recitals Incorporated. The foregoing recitals are incorporated herein by reference into this AGREEMENT as though set forth at length and shall be separate design plans from the internal civil improvements.

B. Both parties understand that the municipal code requires the District to construct, at its cost, all public and private improvements (development improvements) necessitated by the development itself and required to mitigate offsite impacts associated with the development in accordance with Chapter 1.16 Annexation and Infrastructure Improvements of the Cheyenne Municipal Code.

C. The City understands that the State Construction Department budget provided to District did not contain funding to fully program for the offsite financial requirements associated with the infrastructure improvements of Carlson Street.

D. In exchange for the delivery of said 3.3-acre parcel to the fee possession of the City by the District, the City will relieve the District of certain offsite roadway public improvements for Carlson Street in accordance with Exhibit A and this agreement.

E. In agreeing to the exchange, the City has considered the benefit of the additional right-of-way for curb and gutter and offsite improvements granted by the District to the City along the east side of Powderhouse Road, (typically double the 10’ width of said right-of-way), as indicated on Exhibit A.

F. The value of the District's 3.3-acre parcel and said additional rights-of-way equals \$265,000 (Exhibit B). The estimated total construction cost of the District proposed Carlson Street improvements in entirety has been estimated in 2021 at \$705,000 (Exhibit C.2). The estimated total participatory construction costs for Carlson Street are anticipated to be \$590,000 for the District and \$118,000 for the City including item G below (See Exhibit C.2). The final value of the improvements will be based on the lowest, qualified, responsive bid accepted by the District.

G. The City agrees to compensate the District for the additional 2-foot width of concrete sidewalk and crushed base requested oversizing of offsite public concrete sidewalk improvements adjacent to Carlson Street and Powderhouse Road which are associated with this development. The estimated total construction costs for those improvements are included in Item F and Exhibit C.2.

4. **Commencement Date.** This AGREEMENT shall commence on the date when fully executed by all parties.

5. **Payment.** Upon receiving itemized invoices from the District, the City agrees to pay the District for a portion of the accepted and approved Carlson Street improvements and associated oversizing of adjacent public sidewalk as illustrated in Exhibit A and C.2. Such costs shall include, but not necessarily be limited to, materials, labor, and incidentals required to construct the Carlson Street improvements, as determined by the successful bidder in the amount as outlined in Section 3, *Terms of Agreement*. In no event will the total paid by the City to the District under this AGREEMENT exceed the accepted bid amount or 150% of the initial established cost estimates outlined above (\$177,000.00) whichever is less, without modification to this AGREEMENT.

6. **Responsibilities of the District.** The District shall:

A. Include the construction drawings reviewed and approved by the City for the Carlson Street improvements in the overall construction drawings for the project.

B. Supply bidding services for the project construction. The Carlson Street improvements shall be separated in the bid schedule such that the total construction cost for any additional the City's portion of the project is distinct.

C. Award the project to the successful bidder.

D. Administer the project, subject to the responsibilities of the City outlined below.

E. Pay the successful contractor for work properly completed on the project.

F. Commission and pay for a survey of the 3.3-acre parcel at South High School.

G. The District shall furnish and perpetually maintain to the satisfaction of the City the flexible tubular markers located at the site approach on Powderhouse Road.

7. **Responsibilities of the City.** The City shall:

A. Prepare and record an Administrative Plat or other instrument acceptable to the City. Agree to dedicate, on the Final Plat, a variable width Access and Utility Easement to be located adjacent to the 20' Utility Easement as dedicated on the South Cheyenne High School Final Plat recorded November 5, 2007, at Book 9, Page 46.

B. May elect to contribute future funds to the District for additional public improvements beyond those illustrated to Exhibit A. Payment shall be made as outlined in Section 5 above.

8. **Special Provisions.**

A. Following the bidding of the project by the District, the City shall participate in the review of the bids to determine the reasonableness of the bids associated with the Carlson Street improvement, based on industry standards.

9. **General Provisions.**

A. Amendments. Either party may request changes in this AGREEMENT. Any changes, modifications, revisions or amendment to the AGREEMENT which are mutually agreed upon by and between parties to the AGREEMENT shall be incorporated by written instrument, executed and signed by all parties to this AGREEMENT.

B. Applicable Law. The construction, interpretation and enforcement of the AGREEMENT shall be governed by the laws of the State of Wyoming. The courts of the State of Wyoming shall have jurisdiction over any action arising out of this AGREEMENT and over the parties, and the venue shall be First Judicial District, Laramie County, Wyoming.

C. Assignments. This AGREEMENT shall be binding upon and inure to the benefit of the parties hereto and their respective heirs, successors, transferees, and permitted assignees. Neither party shall assign this AGREEMENT without the express written consent of the other.

D. Availability of Funds. Each payment obligation of either party is conditioned upon the availability of government funds, which are appropriated or allocated for the payment of this obligation. If funds are not allocated and available for the continuance of the services performed by either party, either party may terminate the AGREEMENT at the end of the period for which the funds are available. Each Party shall notify the other party at the earliest possible time of the service which will or may be affected by a shortage of funds. No penalty shall accrue to either party in the event of this provision is exercised, and neither party shall be obligated or liable for any future payments due for any damages as a result from termination under this section. This provision shall not be construed to permit either party to terminate this AGREEMENT in order to acquire similar services from another party.

E. Entirety of Agreement. This AGREEMENT represents the entire and integrated agreement between the parties and supersedes all prior negotiations, representations and agreements, whether written or oral.

F. Force Majeure. Neither party shall be liable to perform under the AGREEMENT if such failure arises out of causes beyond control and without the fault or negligence of said party. Such causes may include but are not limited to. Acts of God or the public enemy, fires, floods, epidemics, quarantine restrictions, freight embargoes, and unusually severe weather.

G. Notices. All notices arising out of or from the provisions of this AGREEMENT shall be in writing and give to the parties either by regular mail or delivery in person.

H. Sovereign/Governmental Immunity. The City of Cheyenne and Laramie County School District Number One do not waive their sovereign/governmental immunity by entering this AGREEMENT, and each fully retains all immunities and defenses provided by law with respect to any action based on or occurring as a result of this AGREEMENT.

I. Approvals. This agreement must be approved by the Wyoming School Facilities Commission.

J. Insurance Requirements, Indemnification. The District shall include the following provisions in any contract it enters for the construction of Carlson Street improvements described in this AGREEMENT.

1. The Contractor engaged by the District to construct the Carlson Street improvements shall file a Certificate of Insurance with the City of Cheyenne verifying each type of insurance coverage listed below.

2. The Certificate of Insurance shall be submitted to and approved by the City of Cheyenne prior to commencement of construction of the Carlson Street improvements described in this AGREEMENT.

3. <u>Type of Coverage.</u>	<u>Minimum Limits</u>
Commercial General Liability (Including Products and Completed Operations; Explosion, Collapse and Underground if applicable to the hazards of a specific project.)	\$1,000,000 per Occurrence \$2,000,000 Aggregate
Business Automobile Liability Workers' Compensation OR Employer's Liability	\$1,000,000 CSL Statutory \$500,000 Each Accident

\$500,000 Each Disease-
Policy Limit
\$500,000Disease/Each
Employee

4. It is understood and agreed that these insurance coverages are primary and not contributory. All policies providing the coverages required hereunder shall be in effect for the duration of the Carlson Street improvements project and for so long as any contract relating to the construction of said improvements remains in effect. It shall be an affirmative obligation upon the Contractor to provide immediately written notification to the City of Cheyenne Risk Manager, City Clerk, and City Attorney of any fact, circumstance, or occurrence that has resulted in or may result in the cancellation or substantive change of any insurance coverage required hereunder.

5. The City of Cheyenne shall be named as an **additional insured** on the Contractor's insurance policies, except workers' compensation, and the Contractor shall provide a copy of the endorsements providing this coverage.

6. The City has the right to reject a certificate of insurance if any Company engaged by the Contractor to provide any of the insurance coverages required hereunder is widely regarded in the insurance industry as financially unstable. Any insurance company providing coverage under this contract shall have a minimum A.M. Best rating of A- (excellent).

7. The City has the right to review the insurance certificates of any or all subcontractors used by the Contractor. Further, the City requires that the subcontractor's insurance coverages be at least equivalent to that required of the Contractor.

8. The City shall have the right to consult with the Contractor's insurance agent for disclosure of relevant policy information, but the City's failure to request or review such policies, endorsements, or certificates shall not affect the City's rights or Contractor's obligations hereunder. Disclosure of relevant policy information would specifically involve, but is not limited to:

- a. exclusions
- b. deductibles
- c. claims in progress which could significantly reduce the annual aggregate limit.

9. The Contractor engaged by the District to construct the Carlson Street improvements as described in this AGREEMENT agrees to defend, hold harmless, and indemnify the City of Cheyenne, its officials, employees, agents, and authorized volunteers against any and all claims and costs, including attorney's fees, arising during or resulting from the Contractor's performance of work relating to the Carlson Street improvements.

10. It is expressly understood and agreed that the City Engineer shall have the right under any contract entered into by the District for the construction of the Carlson Street improvements, as described in this AGREEMENT, shall have the right under applicable provisions of the Cheyenne City Code to observe and review the work and operations of the Contractor, and the Contractor shall indemnify and hold the City of Cheyenne, the City Engineer and their representatives harmless from and against all suits, actions or claims of any character due to injuries or damages sustained by any person or property in consequence of any negligence in constructing the said Carlson Street improvements, the failure to observe safety standards and regulations, the use of unsafe or unacceptable construction practices or materials in the performance of the work, or the Contractor's failure to comply with any law, ordinance or regulation.

11. Binding Effect. This Agreement shall run with the Property for a period of two (2) years after approval and acceptance of all work associated with the construction of Carlson Street shown illustrated in Exhibit A and the final approved construction documents (i.e. EPR) by the City. This Agreement shall also be binding upon and inure to the benefit of the parties hereto, their respective personal representatives, successors, grantees and assigns. Assignment of interest within the meaning of this paragraph shall specifically include, but not be limited to, a conveyance or assignment of any portion of the Developer's legal or equitable interest in the Property, as well as any assignment of the Developer's rights to develop the Property under the terms and conditions of this Agreement.

12. Entire Agreement. This Agreement (including the Exhibits attached hereto) contains the entire agreement between the parties with respect to the subject matter hereof and supersedes all prior and contemporaneous representations, statements, understandings, negotiations and agreements, oral or written, between the parties, if any, with respect thereto.

K. Signatures. In witness whereof, the parties to this AGREEMENT through their duly authorized representatives have executed this AGREEMENT on the days and dates set out below, and certify that they have read, understood, and agreed to the terms and conditions of this AGREEMENT as set forth herein.

[This Portion of this Page was Intentionally Left Blank]

The effective date of this AGREEMENT is the date of the signature last affixed to this page.

CITY: City of Cheyenne, a Municipal Corporation

By: Patrick J. Collins, Mayor

ATTEST

Kristina F. Jones

Date: _____

DEVELOPER: Laramie County School District Number One

By: Rose Ann Million Rinne, Chair, Board of Trustees

Date: _____

ACKNOWLEDGEMENTS

State of Wyoming)
) ss.
County of Laramie)

Subscribed and sworn to (or affirmed) before me this _____ day of _____, 2022,
by Rose Ann Million Rinne, Chair, Board of Trustees.

Witness my hand and official seal.

Notary Public

My commission expires: _____

EXHIBIT "A"

PUBLIC IMPROVEMENTS CARLSON STREET

Cheyenne, Wyoming

09/30/21

POWDERHOUSE ROAD

(MINOR ARTERIAL - 80' ROW)

POWDERHOUSE ROAD

(MINOR ARTERIAL - 100' ROW)

284'
FULL PROFILE MINUS NORTH SIDEWALK

CARLSON STREET

(COLLECTOR - TYPE B: 80' ROW)

TEMPORARY RIP-RAP
CONSTRUCTED BY LCSD#1

TEMPORARY BERM
CONSTRUCTED BY LCSD#1

584'
MINIMUM NEEDS OF SCHOOL

TEMPORARY RIP-RAP
CONSTRUCTED BY LCSD#1

TEMPORARY BERM
CONSTRUCTED BY LCSD#1

298'
DEFER RIGHT OF WAY IMPROVEMENTS

NOTE: FINAL GRADE AND
EXTENTS OF FUTURE
IMPROVEMENTS WILL
DEPEND ON FINAL
ALIGNMENT AND
ELEVATION OF FORT
LARAMIE TRAIL.

DEFERED RIGHT-OF-WAY IMPROVEMENTS CONSTRUCTED BY CITY

50.00'

47.50'

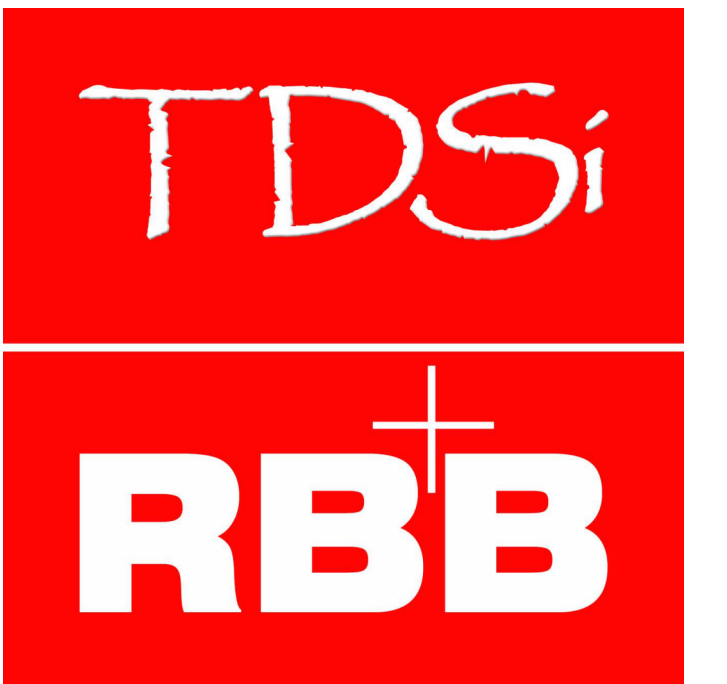
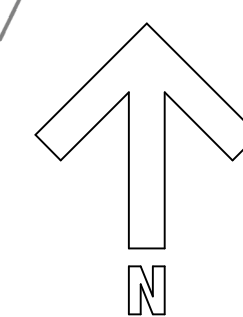
221'
MAX.

84'
MAX.

LCSD1 PROPERTY THAT COULD
BE ADDED TO CARLSON STREET
ROW TO FACILITATE 90°
INTERSECTION AT FORT
LARAMIE TRAIL

POSSIBLE FUTURE
FT. LARAMIE TRAIL

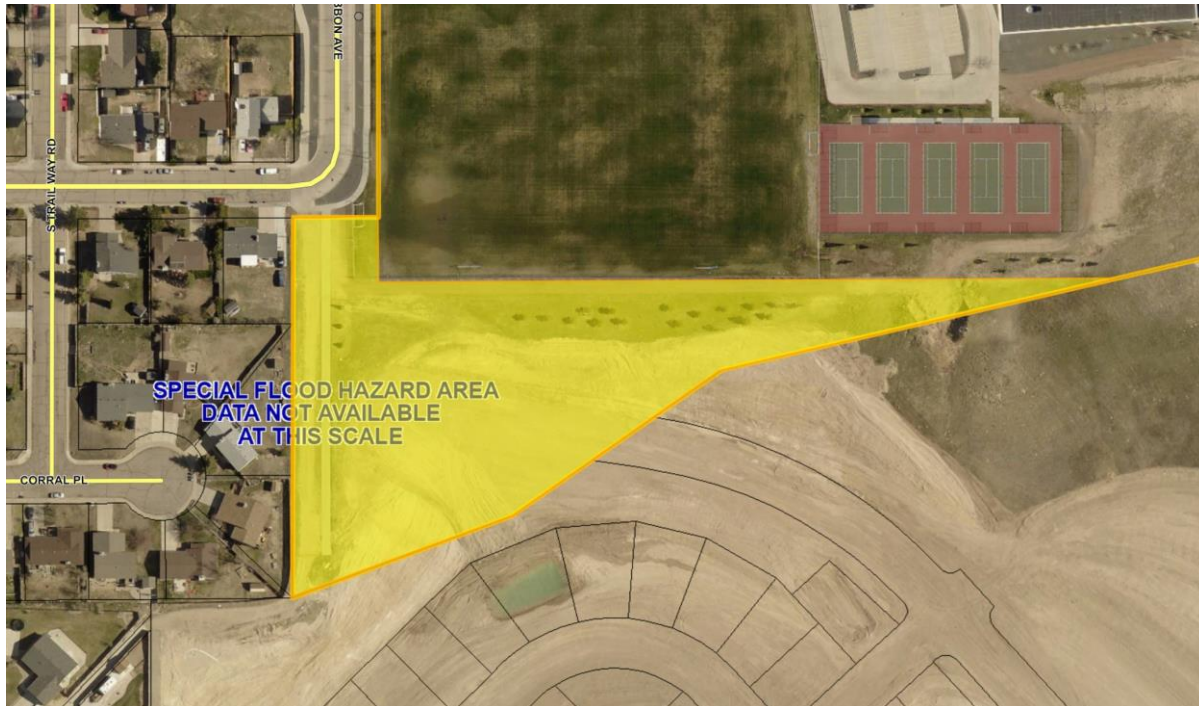
COYOTE RIDGE
ELEMENTARY
SCHOOL



RESTRICTED APPRAISAL REPORT

FOR CLIENT USE ONLY

3.3 Acres
South of Cribbon Avenue
And Pinto Lane



Prepared For:	Laramie County School District 1 Attn: Jeff Daugherty Jeff.daugherty@laramie1.org
Valued as of:	August 12, 2021
Job ID:	21-0811
Prepared By:	Daniel Holbrook Accuvalue, LLC Wyoming State Certified General Real Estate Appraiser #1447

ACCUVALUE, LLC

7915 Braehill Road, Cheyenne, WY 82009
dan@appraisewyoming.com
307-631-6295

August 16, 2021

Mr. Daugherty:

I have prepared a restricted appraisal report for the property shown below. The client listed above is the only intended user of the report. The purpose of the report is to determine market value.

This letter and the value below must be considered in conjunction with the information contained in the report. My analyses, opinions and conclusions were developed, and this report has been prepared, in conformity with the Uniform Standards of Professional Appraisal Practice. After considering all data regarding the subject property and based upon the facts and conclusions within this appraisal report, it is my opinion that the property under appraisal has the following estimated market value:

Estimated Market Value, Fee Simple

3.30 Acres at South West Corner of South High School Lot

Cribbon Avenue and Pinto Lane

As Is as of August 12, 2021

\$ 215,000

The appraisal is subject to the Limiting Conditions in this report. Thank you for this appraisal assignment. If you have any questions, please feel free to contact me.

Sincerely yours,



Daniel Holbrook

Wyoming State Certified General Real Estate Appraiser #1447

LIMITING CONDITIONS

1. Any user of this report agrees to the following limiting conditions.
2. The appraiser assumes no responsibility for matters of a legal nature affecting the property appraised or the title thereto, nor does the appraiser render any opinion as to the title, which is assumed to be good and marketable. The property is appraised as though under responsible ownership.
3. Any sketch in the report may show approximate dimensions and is included to assist the reader in visualizing the property. The appraiser has made no survey of the property.
4. The appraiser is not required to give testimony or appear in court because of having made the appraisal with reference to the property in question, unless arrangements have been previously made therefore.
5. Any distribution of the valuation in the report between land and improvements applies only under the existing program of utilization. The separate valuations for land and building must not be used in conjunction with any other appraisal and are invalid if so used.
6. The appraiser assumes that there are no hidden or unapparent conditions of the property, subsoil, or structures, which would render it more or less valuable. The appraiser assumes no responsibility for such conditions, or for engineering which might be required to discover such factors.
7. The property has been appraised as though free and clear of mortgages, liens, servitude, and encumbrances, except as may be described within the appraisal report.
8. Information, estimates, and opinions furnished to the appraiser, and contained within the report, were obtained from sources considered reliable and believed to be true and correct. However, no responsibility for accuracy of such items furnished the appraiser can be assumed by the appraiser.
9. Neither all nor any part of the contents of this report shall be conveyed to the public through advertising, public relations, news, sales, or other media without the written consent and approval of the author, particularly as to the valuation conclusion, the identity of the appraiser or firm with which it is connected, or any reference to the Appraisal Institute.
10. Possession of this report or any copy thereof does not carry with it the right of publication, nor may the same be used for any purpose by anyone except the appraiser's employer, without the previous written consent of the appraiser, and in any event, only in its entirety.
11. Unless otherwise stated in this report, the subject property is appraised without a specific compliance survey having been conducted to determine if the property is or is

LIMITING CONDITIONS

not in conformance with the requirements of the Americans with Disabilities Act. The presence of architectural and communication barriers that are structural in nature and would restrict access by disabled individuals may adversely affect the property's value, marketability, and/or utility.

12. Unless otherwise stated in this report, the existence of hazardous materials, which may or may not be present on the property, was not observed by the appraiser. The presence of substances such as asbestos, urea-formaldehyde foam insulation, asbestos, or other potentially hazardous materials may affect the value of the property. The appraiser has no knowledge of the existence of such materials on or in the property. The appraiser, however, is not qualified to detect such substances. The presence of potentially hazardous materials may affect the value of the property. The value estimate is predicated on the assumption that there is no such material on or in the property that would cause a loss in value. No responsibility is assumed for any such conditions, or for any expertise or engineering knowledge required to discover them. The client is urged to retain an expert in this field, if desired.
13. It should be understood that this is an Opinion of Value, based upon the data available to the Appraiser(s), not a guarantee or warranty of value.
14. The limit of liability shall be no more than the remuneration received.
15. When feasible within the scope of work, all comparable sales, listings, and rentals have been viewed by the appraiser. When it is not feasible to view all comparables due to time and geographic limitations, the appraiser has relied on information (including photographs, sketches, descriptions, and other items) from other sources. This information is relied upon subject to the extraordinary assumption that it is reliable and representative of the comparable property at the relevant time.
16. Mineral rights, if any, are specifically excluded from consideration in this appraisal report.

SCOPE OF WORK

Identify the Appraisal Problem

➤ Client and Intended Users

I was engaged to perform this assignment by Laramie County School District #1, which is the only intended user.

➤ Intended Use

This appraisal report shall be used for by the client for reference in estate work related to this property. Any other use of this appraisal report is not authorized.

➤ Effective Date of the Opinions and Conclusions

The date of value is August 12, 2021.

➤ Prior Services Performed

I have not performed any services related to the subject property in at least the prior three years.

➤ Type and Definition of Value

The assignment is to estimate the market value of the Fee Simple Estate of the subject property.

Market Value Definition

Market value means the most probable price which a property should bring in a competitive and open market under all conditions requisite to a fair sale, the buyer and seller each acting prudently and knowledgeably, and assuming the price is not affected by undue stimulus. Implicit in this definition is the consummation of a sale as of a specified date and the passing of title from seller to buyer under conditions whereby:

1. buyer and seller are typically motivated;
2. both parties are well informed or well advised and acting in what they consider their own best interests;
3. a reasonable time is allowed for exposure in the open market;
4. payment is made in terms of cash in U.S. dollars or in terms of financial arrangements comparable thereto; and
5. the price represents the normal consideration for the property sold unaffected by special or creative financing or sales concessions granted by anyone associated with the sale.

This definition is from regulations published by federal regulatory agencies pursuant to Title XI of the Financial Institutions Reform, Recovery, and Enforcement Act (FIRREA) of 1989 between July 5, 1990, and August 24, 1990, by the Federal Reserve System (FRS), National Credit Union Administration (NCUA), Federal Deposit Insurance Corporation (FDIC), the Office of Thrift Supervision (OTS), and the Office of Comptroller of the Currency (OCC). This definition is also referenced in regulations jointly published by the OCC, OTS, FRS, and FDIC on June 7, 1994, and in the *Interagency Appraisal and Evaluation Guidelines*, dated October 27, 1994.

SCOPE OF WORK, CONTINUED

Scope of Work

This report is done with a limited scope of work. The client requested an estimate of the Fee Simple Estate. The subject property was inspected by the appraiser. I also inspected information available from online, public sources. There are no similar sales of part of school lots on steep hills, but I used the most similar sales, especially those with some sort of public use or features that would limit typical development options.

CERTIFICATION

I, Daniel Holbrook, certify that, to the best of my knowledge and belief:

- the statements of fact contained in this report are true and correct.
- the reported analyses, opinions, and conclusions are limited only by the reported assumptions and limiting conditions, and are my personal, impartial, and unbiased professional analyses, opinions, and conclusions.
- I have no present or prospective interest in the property that is the subject of this report, and no personal interest with respect to the parties involved.
- I performed appraised the subject property for the same client in 2017.
- I have no bias with respect to the property that is the subject of this report or to the parties involved with this assignment.
- my engagement in this assignment was not contingent upon developing or reporting predetermined results.
- my compensation for completing this assignment is not contingent upon the development or reporting of a predetermined value or direction in value that favors the cause of the client, the amount of the value opinion, the attainment of a stipulated result, or the occurrence of a subsequent event directly related to the intended use of this appraisal.
- my analyses, opinions and conclusions were developed, and this report has been prepared, in conformity with the Uniform Standards of Professional Appraisal Practice.
- I have made a personal inspection of the property that is the subject of this report.
- nobody provided assistance.
- that the appraisal assignment was not based on a requested minimum valuation, a specific valuation, or the approval of a loan.
- I hereby acknowledge that I have the appropriate education and experience to complete the assignment in a competent manner. The reader is referred to the appraisers' statement of qualifications in the Addenda. In addition, I am properly certified to prepare the appraisal. The reader is referred to the copy of the State of Wyoming Certified Real Estate Appraiser Board certificate in the Addenda.
- I have never been publicly censored, suspended or expelled by an appraisal organization.



Daniel Holbrook

DANIEL HOLBROOK

EXPERIENCE

Accuvalue, LLC

Cheyenne, WY

President - Commercial Real Estate Appraising

May 2014 – Present

- Perform valuations of multifamily, industrial, hospitality, retail, office, land, easements
- In 2.5 years as trainee (Appraisals, Inc.), completed over 170 commercial appraisals

Development & Investing

Cheyenne, WY

Real Estate Investing & Development

May 2014 – Present

- Principal in 60-unit apartment project completed 2020
- Principal in 16-unit apartment project completed in 2018

Cornerstone Research, Economic Consulting

Menlo Park, CA

Analyst

July 2013 – May 2014

- Created financial and statistical models analyzing equities, residential MBS, life insurance premiums, and alleged anti-competitive practices
- Found critical documents and created exhibits used in lawsuits with \$1+ Billion in damages
- Filed 5 expert reports: wrote portions, fact and data checking, file cleaning, and document production

Wells Fargo Institutional and Metro Markets Group

Boston, MA

Summer Analyst

May 2012 – August 2012

- Wrote white paper on Boston luxury apartment market which was referred to in allocating \$115M
- Collected construction pipeline and market rent data through calls, interviews, and research

The Real Estate Opportunity Capital Fund

Salt Lake City, UT

Acquisitions Intern

Dec 2011 – April 2012

- Performed valuations of distressed real estate in multiple property classes
- Compiled performance reports and assisted with marketing for \$350M capital raise

LEADERSHIP/SERVICE

Downtown Cheyenne

Cheyenne, WY

Board Member

June 2018 – October 2019

- Valuation specialist on Technical Review Committee for \$15M+ historic redevelopment project
- Assisted in rebrand and rollout for Main Street/DDA and sub-programs

Downtown Development Foundation

Cheyenne, WY

Board Member, Secretary

July 2018 – October 2019

- Secretary for non-profit devoted to revitalizing downtown in economically sustainable ways

EDUCATION

Certified General Appraiser AP-1447; CG.200002131; CG2018001R

- Licensed in Wyoming, Colorado, Nebraska

Brigham Young University

Provo, UT

Majors: Economics and Russian

April 2013

Minor: Business Strategy

- GPA: 3.95/4.00 (Magna Cum Laude); GMAT 750 (98th %-ile); ACT: 34 (99th %-ile)
- National Merit Scholar
- The Real Estate Club, Management Consulting Club, Student Advisory Council
- Econometric research: compared depreciation trends for different housing styles during recession

ACHIEVEMENTS & INTERESTS

- Competed in freestyle skiing competitions and placed top 3 in age group in half-marathon
- Eagle Scout: coordinated drive for newborn supplies and raised \$4,000 for Head Start
- Conversational in Russian; visited all 50 U.S. States and 33 countries



License Number AP-1447

NON TRANSFERABLE

CERTIFIED REAL ESTATE APPRAISER PERMIT

Issued : 01/30/2021

Expires: 01/29/2023

Daniel L. Holbrook

Certified General Appraiser Permit

AS PROVIDED FOR BY THE LAWS OF WYOMING.

Accuvalue, LLC
7915 Braehill Road
Cheyenne WY 82009

AUTHORIZED BY THE WYOMING CERTIFIED
REAL ESTATE APPRAISER BOARD
WITNESS MY HAND AND THE
OFFICIAL SEAL AT CHEYENNE, WYOMING.

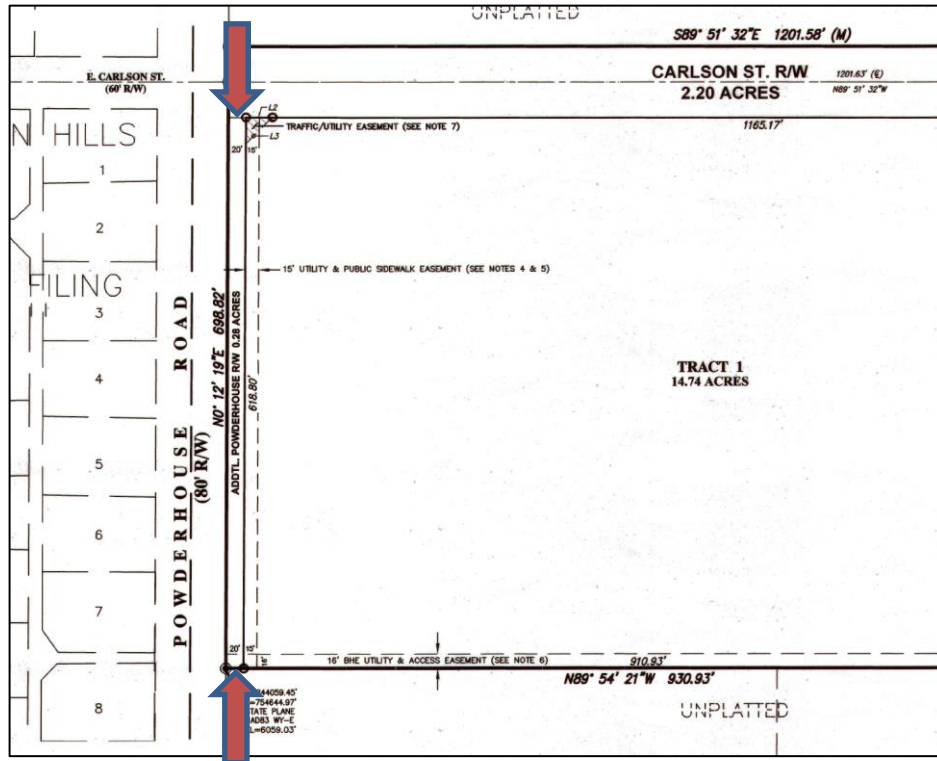
A handwritten signature in cursive script, reading "Rosann R David".

Rosann R David Interim Executive Director

RESTRICTED APPRAISAL REPORT

FOR CLIENT USE ONLY

0.28 Acres
Powerhouse Road
Cheyenne, WY



Prepared For:

Laramie County School District 1
Attn: Jeff Daugherty
Jeff.daugherty@laramie1.org

Valued as of:

August 12, 2021

Job ID:

21-0812

Prepared By:

Daniel Holbrook
Accuvalue, LLC
Wyoming State Certified
General Real Estate Appraiser #1447

ACCUVALUE, LLC

7915 Braehill Road, Cheyenne, WY 82009
dan@appraisewyoming.com
307-631-6295

August 16, 2021

Mr. Daugherty:

I have prepared a restricted appraisal report for the property shown below. The client listed above is the only intended user of the report. The purpose of the report is to determine market value.

This letter and the value below must be considered in conjunction with the information contained in the report. My analyses, opinions and conclusions were developed, and this report has been prepared, in conformity with the Uniform Standards of Professional Appraisal Practice. After considering all data regarding the subject property and based upon the facts and conclusions within this appraisal report, it is my opinion that the property under appraisal has the following estimated market value:

Estimated Market Value, Fee Simple

0.28 Acres along Powderhouse Road

Coyote Ridge

As Is as of August 12, 2021

\$ 50,000

The appraisal is subject to the Limiting Conditions in this report. Thank you for this appraisal assignment. If you have any questions, please feel free to contact me.

Sincerely yours,



Daniel Holbrook

Wyoming State Certified General Real Estate Appraiser #1447

LIMITING CONDITIONS

1. Any user of this report agrees to the following limiting conditions.
2. The appraiser assumes no responsibility for matters of a legal nature affecting the property appraised or the title thereto, nor does the appraiser render any opinion as to the title, which is assumed to be good and marketable. The property is appraised as though under responsible ownership.
3. Any sketch in the report may show approximate dimensions and is included to assist the reader in visualizing the property. The appraiser has made no survey of the property.
4. The appraiser is not required to give testimony or appear in court because of having made the appraisal with reference to the property in question, unless arrangements have been previously made therefore.
5. Any distribution of the valuation in the report between land and improvements applies only under the existing program of utilization. The separate valuations for land and building must not be used in conjunction with any other appraisal and are invalid if so used.
6. The appraiser assumes that there are no hidden or unapparent conditions of the property, subsoil, or structures, which would render it more or less valuable. The appraiser assumes no responsibility for such conditions, or for engineering which might be required to discover such factors.
7. The property has been appraised as though free and clear of mortgages, liens, servitude, and encumbrances, except as may be described within the appraisal report.
8. Information, estimates, and opinions furnished to the appraiser, and contained within the report, were obtained from sources considered reliable and believed to be true and correct. However, no responsibility for accuracy of such items furnished the appraiser can be assumed by the appraiser.
9. Neither all nor any part of the contents of this report shall be conveyed to the public through advertising, public relations, news, sales, or other media without the written consent and approval of the author, particularly as to the valuation conclusion, the identity of the appraiser or firm with which it is connected, or any reference to the Appraisal Institute.
10. Possession of this report or any copy thereof does not carry with it the right of publication, nor may the same be used for any purpose by anyone except the appraiser's employer, without the previous written consent of the appraiser, and in any event, only in its entirety.
11. Unless otherwise stated in this report, the subject property is appraised without a specific compliance survey having been conducted to determine if the property is or is

LIMITING CONDITIONS

not in conformance with the requirements of the Americans with Disabilities Act. The presence of architectural and communication barriers that are structural in nature and would restrict access by disabled individuals may adversely affect the property's value, marketability, and/or utility.

12. Unless otherwise stated in this report, the existence of hazardous materials, which may or may not be present on the property, was not observed by the appraiser. The presence of substances such as asbestos, urea-formaldehyde foam insulation, asbestos, or other potentially hazardous materials may affect the value of the property. The appraiser has no knowledge of the existence of such materials on or in the property. The appraiser, however, is not qualified to detect such substances. The presence of potentially hazardous materials may affect the value of the property. The value estimate is predicated on the assumption that there is no such material on or in the property that would cause a loss in value. No responsibility is assumed for any such conditions, or for any expertise or engineering knowledge required to discover them. The client is urged to retain an expert in this field, if desired.
13. It should be understood that this is an Opinion of Value, based upon the data available to the Appraiser(s), not a guarantee or warranty of value.
14. The limit of liability shall be no more than the remuneration received.
15. When feasible within the scope of work, all comparable sales, listings, and rentals have been viewed by the appraiser. When it is not feasible to view all comparables due to time and geographic limitations, the appraiser has relied on information (including photographs, sketches, descriptions, and other items) from other sources. This information is relied upon subject to the extraordinary assumption that it is reliable and representative of the comparable property at the relevant time.
16. Mineral rights, if any, are specifically excluded from consideration in this appraisal report.

SCOPE OF WORK

Identify the Appraisal Problem

➤ Client and Intended Users

I was engaged to perform this assignment by Laramie County School District #1, which is the only intended user.

➤ Intended Use

This appraisal report shall be used for by the client for reference in estate work related to this property. Any other use of this appraisal report is not authorized.

➤ Effective Date of the Opinions and Conclusions

The date of value is August 12, 2021.

➤ Prior Services Performed

I have not performed any services related to the subject property in at least the prior three years.

➤ Type and Definition of Value

The assignment is to estimate the market value of the Fee Simple Estate of the subject property.

Market Value Definition

Market value means the most probable price which a property should bring in a competitive and open market under all conditions requisite to a fair sale, the buyer and seller each acting prudently and knowledgeably, and assuming the price is not affected by undue stimulus. Implicit in this definition is the consummation of a sale as of a specified date and the passing of title from seller to buyer under conditions whereby:

1. buyer and seller are typically motivated;
2. both parties are well informed or well advised and acting in what they consider their own best interests;
3. a reasonable time is allowed for exposure in the open market;
4. payment is made in terms of cash in U.S. dollars or in terms of financial arrangements comparable thereto; and
5. the price represents the normal consideration for the property sold unaffected by special or creative financing or sales concessions granted by anyone associated with the sale.

This definition is from regulations published by federal regulatory agencies pursuant to Title XI of the Financial Institutions Reform, Recovery, and Enforcement Act (FIRREA) of 1989 between July 5, 1990, and August 24, 1990, by the Federal Reserve System (FRS), National Credit Union Administration (NCUA), Federal Deposit Insurance Corporation (FDIC), the Office of Thrift Supervision (OTS), and the Office of Comptroller of the Currency (OCC). This definition is also referenced in regulations jointly published by the OCC, OTS, FRS, and FDIC on June 7, 1994, and in the *Interagency Appraisal and Evaluation Guidelines*, dated October 27, 1994.

SCOPE OF WORK, CONTINUED

Scope of Work

This report is done with a limited scope of work. The client requested an estimate of the Fee Simple Estate. The subject property was inspected by the appraiser. I also inspected information available from online, public sources. There are few market-rate sales of portions of right away or other strips of land for which data is available. I have used the most similar sales of which I know. I also used the "Across The Fence" method, which is common for land that cannot be used independently.

CERTIFICATION

I, Daniel Holbrook, certify that, to the best of my knowledge and belief:

- the statements of fact contained in this report are true and correct.
- the reported analyses, opinions, and conclusions are limited only by the reported assumptions and limiting conditions, and are my personal, impartial, and unbiased professional analyses, opinions, and conclusions.
- I have no present or prospective interest in the property that is the subject of this report, and no personal interest with respect to the parties involved.
- I performed appraised the subject property for the same client in 2017.
- I have no bias with respect to the property that is the subject of this report or to the parties involved with this assignment.
- my engagement in this assignment was not contingent upon developing or reporting predetermined results.
- my compensation for completing this assignment is not contingent upon the development or reporting of a predetermined value or direction in value that favors the cause of the client, the amount of the value opinion, the attainment of a stipulated result, or the occurrence of a subsequent event directly related to the intended use of this appraisal.
- my analyses, opinions and conclusions were developed, and this report has been prepared, in conformity with the Uniform Standards of Professional Appraisal Practice.
- I have made a personal inspection of the property that is the subject of this report.
- nobody provided assistance.
- that the appraisal assignment was not based on a requested minimum valuation, a specific valuation, or the approval of a loan.
- I hereby acknowledge that I have the appropriate education and experience to complete the assignment in a competent manner. The reader is referred to the appraisers' statement of qualifications in the Addenda. In addition, I am properly certified to prepare the appraisal. The reader is referred to the copy of the State of Wyoming Certified Real Estate Appraiser Board certificate in the Addenda.
- I have never been publicly censored, suspended or expelled by an appraisal organization.



Daniel Holbrook

DANIEL HOLBROOK

EXPERIENCE

Accuvalue, LLC

Cheyenne, WY

President - Commercial Real Estate Appraising

May 2014 – Present

- Perform valuations of multifamily, industrial, hospitality, retail, office, land, easements
- In 2.5 years as trainee (Appraisals, Inc.), completed over 170 commercial appraisals

Development & Investing

Cheyenne, WY

Real Estate Investing & Development

May 2014 – Present

- Principal in 60-unit apartment project completed 2020
- Principal in 16-unit apartment project completed in 2018

Cornerstone Research, Economic Consulting

Menlo Park, CA

Analyst

July 2013 – May 2014

- Created financial and statistical models analyzing equities, residential MBS, life insurance premiums, and alleged anti-competitive practices
- Found critical documents and created exhibits used in lawsuits with \$1+ Billion in damages
- Filed 5 expert reports: wrote portions, fact and data checking, file cleaning, and document production

Wells Fargo Institutional and Metro Markets Group

Boston, MA

Summer Analyst

May 2012 – August 2012

- Wrote white paper on Boston luxury apartment market which was referred to in allocating \$115M
- Collected construction pipeline and market rent data through calls, interviews, and research

The Real Estate Opportunity Capital Fund

Salt Lake City, UT

Acquisitions Intern

Dec 2011 – April 2012

- Performed valuations of distressed real estate in multiple property classes
- Compiled performance reports and assisted with marketing for \$350M capital raise

LEADERSHIP/SERVICE

Downtown Cheyenne

Cheyenne, WY

Board Member

June 2018 – October 2019

- Valuation specialist on Technical Review Committee for \$15M+ historic redevelopment project
- Assisted in rebrand and rollout for Main Street/DDA and sub-programs

Downtown Development Foundation

Cheyenne, WY

Board Member, Secretary

July 2018 – October 2019

- Secretary for non-profit devoted to revitalizing downtown in economically sustainable ways

EDUCATION

Certified General Appraiser AP-1447; CG.200002131; CG2018001R

- Licensed in Wyoming, Colorado, Nebraska

Brigham Young University

Provo, UT

Majors: Economics and Russian

April 2013

Minor: Business Strategy

- GPA: 3.95/4.00 (Magna Cum Laude); GMAT 750 (98th %-ile); ACT: 34 (99th %-ile)
- National Merit Scholar
- The Real Estate Club, Management Consulting Club, Student Advisory Council
- Econometric research: compared depreciation trends for different housing styles during recession

ACHIEVEMENTS & INTERESTS

- Competed in freestyle skiing competitions and placed top 3 in age group in half-marathon
- Eagle Scout: coordinated drive for newborn supplies and raised \$4,000 for Head Start
- Conversational in Russian; visited all 50 U.S. States and 33 countries



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Accuvalue, LLC
7915 Braehill Road
Cheyenne WY 82009

AUTHORIZED BY THE WYOMING CERTIFIED
REAL ESTATE APPRAISER BOARD
WITNESS MY HAND AND THE
OFFICIAL SEAL AT CHEYENNE, WYOMING.

A handwritten signature in cursive script, reading "Rosann R David".

Rosann R David Interim Executive Director

EXHIBIT C.1 LCSO NO. 1 TOTAL REQUIRED DEVELOPER IMPROVEMENTS ANTICIPATED WITHIN ROW OF CARLSON STREET



Project #: COYOTE RIDGE DEVELOPMENT AGREEMENT
 Project Name: ENGINEER'S OPINION OF COST
 Compiled By: D. Klahn, T. Cobb
 Date: 1.17.2022

				Engineers Estimate	
Item No.	Item	Total	Unit	Unit Price	Total
1020.01	BONDS AND INSURANCE	1	LS	\$ 4,000.00	\$ 4,000.00
1020.03	POTHOLING UTILITIES (NON-DESTRUCTIVE)*	1	LS	\$ 5,000.00	\$ 5,000.00
1030.01	MOBILIZATION	1	LS	\$ 41,000.00	\$ 41,000.00
1050.01	TRAFFIC CONTROL	1	LS	\$ 2,625.00	\$ 2,625.00
1060.01	CONSTRUCTION SURVEYING*	1	LS	\$ 7,000.00	\$ 7,000.00
1563.01	STORMWATER MANAGEMENT & EROSION CONTROL*	1	LS	\$ 10,000.00	\$ 10,000.00
2205.01	TOPSOIL STORING*	1,500	CY	\$ 2.25	\$ 3,375.00
2205.02	TOPSOIL PLACING*	1,500	CY	\$ 2.75	\$ 4,125.00
2210.01	UNCLASSIFIED EXCAVATION	5,650	CY	\$ 6.50	\$ 36,725.00
2231.04	CRUSHED BASE	2,530	Ton	\$ 23.35	\$ 59,076.00
2512.01	PLANT MIX BITUMINOUS PAVEMENT (TYPE II) GRADING 'A' - 4"	6,100	SY	\$ 26.65	\$ 162,565.00
2512.02	PLANT MIX BITUMINOUS PAVEMENT (TYPE II) GRADING 'D' - 2"	6,100	SY	\$ 13.32	\$ 81,252.00
2665.01	CONNECT TO EXISTING MAIN *	1	EA	\$ 3,500.00	\$ 3,500.00
2665.06	6 INCH PVC - C900*	60	LF	\$ 125.00	\$ 7,500.00
2665.08	8 INCH PVC - C900	1,200	LF	\$ 67.00	\$ 80,400.00
2665.16	6 INCH FIRE HYDRANT ASSEMBLY (COMPLETE IN PLACE)**	1	EA	\$ 7,500.00	\$ 7,500.00
2665.36	6 INCH GATE VALVE*	1	EA	\$ 1,330.00	\$ 1,330.00
2665.38	8 INCH GATE VALVE	4	EA	\$ 2,200.00	\$ 8,800.00
2900.01	LANDSCAPING (NORTH OF CARLSON)	17,500	SF	\$ 1.50	\$ 26,250.00
2900.01	LANDSCAPING (SOUTH OF CARLSON)	6,500	SF	\$ 6.00	\$ 39,000.00
3330.01	CURB AND GUTTER - TYPE A	2,364	LF	\$ 21.25	\$ 50,235.00
3340.01	CURB RETURN FILLETS, R	8	EA	\$ 2,010.00	\$ 16,080.00
3340.03	CONCRETE SIDEWALK (SOUTH OF CARLSON)**	1,005	SY	\$ 45.00	\$ 45,225.00
3340.02	CONCRETE DRIVEWAY APPROACH - 8 INCH	430	SY	\$ 87.00	\$ 37,410.00
4000.01	PAVEMENT MARKINGS (EXPOXY PAINT LINE 4 INCH)*	5,677	LF	\$ 4.30	\$ 24,411.00
4000.05	THERMOPLASTIC PAVEMENT MARKINGS*	46.5	SF	\$ 28.00	\$ 1,302.00
5110.60	MACHINE PLACED RIPRAP (D50 = 12 INCH)*	50	CY	\$ 141.50	\$ 7,075.00
7023.03	SIGN POST, SQ TUBULAR STL*	7	EA	\$ 200.00	\$ 1,400.00
7023.05	SIGN PANELS, ALUMINUM*	30	SF	\$ 28.61	\$ 858.00
8000.00	QUALITY CONTROL TESTING	1	LS	\$ 8,400.00	\$ 8,400.00
SUB-TOTAL					\$ 783,419.00
	CONTINGENCY (5%)	1	LS	\$ 39,171.00	\$ 39,171.00
SUB-TOTAL CONSTRUCTION COST					\$ 822,590.00
FOR ESTIMATE					\$ 823,000.00

Footnotes:

- (1) The Cost Estimates were developed using data from 2021 Weighted Average Bid Prices, compiled by WYDOT; and 2021 Construction Costs from historical City of Cheyenne project experience database.
- (2) Please note totals and unit prices are calculated based on 2021 present worth or present value dollars. Adjustments should be made for years beyond the present year to better estimate required capital dollars for future improvements plan(s).
- (3) Landscaping (Restore and Reclaim) for areas adjacent to right-of-way.
- (4) Estimated values of Contract Bond and Insurance and Mobilization were estimated at 0.5% and 5.5% of total construction cost, respectively.
- (5) Quantities furnished by Laramie County School District 1 i.e. TDSI, BenchMark Engineers (Additional Items by City of Cheyenne Engineering and Identified by items with *, Modified Quantity **)
- (6) Reference Exhibit 'A'
- (7) Roadway Assumptions:



Project #: **COYOTE RIDGE DEVELOPMENT AGREEMENT**
Project Name: **ENGINEER'S OPINION OF COST**
Compiled By: **D. Klahn, T. Cobb**
Date: **1.17.2022**

				Engineers Estimate	
Item No.	Item	Total	Unit	Unit Price	Total
	6" Asphalt on 6" Crushed Base Grading 'W'				
	6' Sidewalk (South of Carlson Street)				
	No costs for signalization of Carlson Street at Powderhouse Road				
	No costs for the relocation of Utilities on Powderhouse Road				

EXHIBIT C.2 LCSD NO. 1 PROPOSED IMPROVEMENTS WITH ROW OF CARLSON STREET



Project #: COYOTE RIDGE DEVELOPMENT AGREEMENT
 Project Name: ENGINEER'S OPINION OF COST
 Compiled By: D. Klahn, T. Cobb
 Date: 3.4.2022

Item No.	Item	Total	Unit	PROPOSED PROJECT		LCSD NO. 1		CITY OF CHEYENNE	
				Unit Price	Total	Quantity	Total	Quantity	Total
1020.01	BONDS AND INSURANCE	1	LS	\$ 4,000.00	\$ 4,000.00	0.85	\$ 3,400.00	0.15	\$ 600.00
1020.03	POTHOLING UTILITIES (NON-DESTRUCTIVE)*	1	LS	\$ 5,000.00	\$ 5,000.00	0.85	\$ 4,250.00	0.15	\$ 750.00
1030.01	MOBILIZATION	1	LS	\$ 35,000.00	\$ 35,000.00	0.85	\$ 29,750.00	0.15	\$ 5,250.00
1050.01	TRAFFIC CONTROL	1	LS	\$ 2,625.00	\$ 2,625.00	0.85	\$ 2,231.25	0.15	\$ 393.75
1060.01	CONSTRUCTION SURVEYING*	1	LS	\$ 6,000.00	\$ 6,000.00	0.85	\$ 5,100.00	0.15	\$ 900.00
1563.01	STORMWATER MANAGEMENT & EROSION CONTROL*	1	LS	\$ 10,000.00	\$ 10,000.00	0.85	\$ 8,500.00	0.15	\$ 1,500.00
2205.01	TOPSOIL STORING*	1,500	CY	\$ 2.25	\$ 3,375.00	1,237	\$ 2,782.16	263	\$ 592.85
2205.02	TOPSOIL PLACING*	1,500	CY	\$ 2.75	\$ 4,125.00	1,237	\$ 3,400.41	263	\$ 724.59
2210.01	UNCLASSIFIED EXCAVATION	5,650	CY	\$ 6.50	\$ 36,725.00	4,446	\$ 28,899.00	1,204	\$ 7,826.00
2231.04	CRUSHED BASE	2,000	Ton	\$ 23.35	\$ 46,700.00	1,478	\$ 34,501.96	522	\$ 12,198.04
2231.04	CRUSHED BASE (SIDEWALK POWDERHOUSE ROAD)		Ton	\$ 23.35	\$ -		\$ -	12	\$ 280.20
2512.01	PLANT MIX BITUMINOUS PAVEMENT (TYPE II) GRADING 'A' - 4"	4,709	SY	\$ 26.65	\$ 125,494.85	3,387	\$ 90,262.99	1,322	\$ 35,231.86
2512.02	PLANT MIX BITUMINOUS PAVEMENT (TYPE II) GRADING 'D' - 2"	4,709	SY	\$ 13.32	\$ 62,723.88	3,387	\$ 45,114.56	1,322	\$ 17,609.32
2665.01	CONNECT TO EXISTING MAIN *	1	EA	\$ 3,500.00	\$ 3,500.00	1	\$ 3,500.00		\$ -
2665.06	6 INCH PVC - C900*	60	LF	\$ 125.00	\$ 7,500.00	60	\$ 7,500.00		\$ -
2665.08	8 INCH PVC - C900	956	LF	\$ 67.00	\$ 64,052.00	956	\$ 64,052.00		\$ -
2665.16	6 INCH FIRE HYDRANT ASSEMBLY (COMPLETE IN PLACE)	3	EA	\$ 7,500.00	\$ 22,500.00	3	\$ 22,500.00		\$ -
2665.36	6 INCH GATE VALVE*	1	EA	\$ 1,330.00	\$ 1,330.00	1	\$ 1,330.00		\$ -
2665.38	8 INCH GATE VALVE	3	EA	\$ 2,200.00	\$ 6,600.00	3	\$ 6,600.00		\$ -
2900.01	LANDSCAPING (NORTH OF CARLSON)	17,500	SF	\$ 1.50	\$ 26,250.00	17,500	\$ 26,250.00		\$ -
2900.01	LANDSCAPING (SOUTH OF CARLSON)	6,500	SF	\$ 6.00	\$ 39,000.00	6,500	\$ 39,000.00		\$ -
3330.01	CURB AND GUTTER - TYPE A	1,822	LF	\$ 21.25	\$ 38,717.50	1,270	\$ 26,987.50	552	\$ 11,730.00
3340.01	CURB RETURN FILLETS, R	8	EA	\$ 2,010.00	\$ 16,080.00	8	\$ 16,080.00		\$ -
3340.03	CONCRETE SIDEWALK (SOUTH OF CARLSON)**	731	SY	\$ 45.00	\$ 32,895.00	548	\$ 24,660.00	183	\$ 8,235.00
3340.03	CONCRETE SIDEWALK (ADJACENT TO POWDERHOUSE ROAD)*		SY	\$ 45.00	\$ -		\$ -	51	\$ 2,295.00
3340.02	CONCRETE DRIVEWAY APPROACH - 8 INCH	430	SY	\$ 87.00	\$ 37,410.00	430	\$ 37,410.00		\$ -
4000.01	PAVEMENT MARKINGS (EXPOXY PAINT LINE 4 INCH)*	3,388	LF	\$ 4.30	\$ 14,568.40	2,224	\$ 9,563.20	1,164	\$ 5,005.20
4000.05	THERMOPLASTIC PAVEMENT MARKINGS*	46.5	SF	\$ 28.00	\$ 1,302.00	46.50	\$ 1,302.00		\$ -
5110.60	MACHINE PLACE RIPRAP (D50 = 12 INCH)*	50	CY	\$ 141.50	\$ 7,075.00	50	\$ 7,075.00		\$ -
7023.03	SIGN POST, SQ TUBULAR STL*	7	EA	\$ 200.00	\$ 1,400.00	7	\$ 1,400.00		\$ -
7023.05	SIGN PANELS, ALUMINUM*	30	SF	\$ 28.61	\$ 858.30	30	\$ 858.30		\$ -
8000.00	QUALITY CONTROL TESTING	1	LS	\$ 8,400.00	\$ 8,400.00	0.85	\$ 7,140.00	0.15	\$ 1,260.00
	SUB-TOTAL				\$ 671,206.93		\$ 561,400.33		\$ 112,381.81
	CONTINGENCY (5%)	1	LS	\$ 33,560.00	\$ 33,560.00	0.85	\$ 28,526.00	0.15	\$ 5,034.00
	SUB-TOTAL CONSTRUCTION COST				\$ 704,766.93		\$ 589,926.33		\$ 117,415.81
	FOR ESTIMATE				\$ 705,000.00		\$ 590,000.00		\$ 118,000.00

Footnotes:

- (1) The Cost Estimates were developed using data from 2021 Weighted Average Bid Prices, compiled by WYDOT; and 2021 Construction Costs from historical City of Cheyenne project experience database.
- (2) Please note totals and unit prices are calculated based on 2021 present worth or present value dollars. Adjustments should be made for years beyond the present year to better estimate required capital dollars for future improvements plan(s).
- (3) Landscaping (Restore and Reclaim) for areas adjacent to right-of-way.
- (4) Estimated values of Contract Bond and Insurance and Mobilization were estimated at 0.5% and 5.5% of total construction cost, respectively.
- (5) Quantities furnished by Laramie County School District 1 i.e. TDSI, BenchMark Engineers (Additional Items by City of Cheyenne Engineering and Identified by items with *, Modified Quantity **)
- (6) Reference Exhibit 'A'
- (7) Roadway Assumptions:
 6" Asphalt on 6" Crushed Base Grading 'W'
 8' Sidewalk (South side of Carlson Street within Right-of-way)
 No costs for signalization of Carlson Street at Powderhouse Road
 No costs for the relocation of Utilities on Powderhouse Road
- (8) Red indicates 2' Oversize Sidewalk on Powderhouse Road